

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF KOROLKOVA AND OTHERS v. RUSSIA

(Applications nos. 44630/21 and 26 others –
see appended list)

JUDGMENT

STRASBOURG

14 March 2024

This judgment is final but it may be subject to editorial revision.



In the case of Korolkova and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 15 February 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention and Protocols to it.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and Article 2 of Protocol no. 7 to the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and

5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, §§ 402-78, 7 February 2017, regarding restrictions on location or time of public events; *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under the Convention. In view of the findings in paragraph 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints of the applicants;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and of Article 2 of Protocol no. 7 to it as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 14 March 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
1.	44630/21 24/08/2021	**Lyubov Aleksandrovna KOROLKOVA** 1986	Solovyev Stanislav Vyacheslavovich Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 02/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling administrative offence record and detention at the police station between 4.30 p.m. and 10:30 p.m. on 31/01/2021 - detained for more than three hours after the offence record was drawn up, without any justification, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	4,000
2.	44981/21 03/09/2021	**Sergey Aleksandrovich MIKHAYLOV** 1992	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of Tatarstan 17/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 1.30 p.m. on 31/01/2021 and 01/02/2021	4,000
3.	45026/21 25/08/2021	**Anna Anatolyevna MALYGINA** 1985	Shchukin Andrey Yevgenyevcich Nizhniy Tagil	Opposition rally Yekaterinburg 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 14/07/2021	Art. 5 (1) – unlawful detention - the applicant was detained for more than three hours after the administrative offence record was drawn up, without any justification (between noon on 31/01/2021 and 3.30 p.m. on the same day),	4,000

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								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	
4.	45027/21 24/08/2021	**Nikita Dmitriyevich BOROVKOV** 1989	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 30/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling administrative offence record, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
5.	45028/21 03/09/2021	**Dmitriy Vladimirovich PICHUGIN** 1966	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally "Free Navalnyy" Kurgan 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Kurgan Regional Court 15/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling administrative offence record, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
6.	45030/21 24/08/2021	**Kirill Aleksandrovich LITVINOV** 1982	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 30/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling administrative offence record, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
7.	45031/21 24/08/2021	**Dmitriy Nikolayevich PARKHOMENKO** 1990	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 30/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling administrative offence record, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
8.	45035/21 24/08/2021	**Vadim Valeryevich PILYUGIN** 1979	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 30/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling administrative offence record, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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9.	45036/21 03/09/2021	**Vladimir Vyacheslavovich NIKOLAYEV** 1962	Pomazuyev Aleksandr Yevgenyevich Moscow	Rally "Free Navalnyy" Tumen 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Tumen Regional Court 17/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 29/01/2021 (six days after the protest action) for compiling administrative offence record, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
10.	45039/21 03/09/2021	**Kirill Georgiyevich REPIN** 1998	Pomazuyev Aleksandr Yevgenyevich Moscow	Rally "Free Navalnyy" Ulyanovsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Ulyanovsk Regional Court 18/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling administrative offence record, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
11.	45129/21 17/08/2021	**Daniel KRSTEVSKI** 1997	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 26/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence record on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
12.	45156/21 17/08/2021	**Dmitriy Vyacheslavovich NEKLYUDOV** 1986	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 26/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence record on 02/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
13.	45170/21 20/08/2021	**Semen Aleksandrovich KOMARCHEV** 2000	Tevosov Georgiy Eduardovich Moscow	Meeting of "Open Russia" movement Moscow 13/03/2021	article 20.33 of CAO	fine of RUB 15,000	Moscow City Court 21/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 10.30 a.m. and about 4.00 p.m. on 13/03/2021	4,000

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14.	45180/21 17/08/2021	**Yegor Alekseyevich ISAYEV** 1988	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/04/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to the police station for compiling an offence record on 02/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
15.	45245/21 26/08/2021	**Vasiliy Aleksandrovich DMITRIYEV** 2000	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally "Free Navalnyy" Kurgan 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Kurgan Regional Court 16/03/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to and detention at the police station for compiling an offence record on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
16.	26106/22 04/05/2022	**Damir Filaritovich BIKMETOV** 1967	Tiunov Sergey Yuryevich Yekaterinburg	Opposition rally Yekaterinburg 11/09/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 08/12/2021	Art. 5 (1) - unlawful detention - escorting to and detention for compiling an offence record on 11/09/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 6 (1) - and Art. 6 (3) (c) - unfair criminal proceedings due to lack of legal representation - lawyer not allowed in the hearing	4,000
17.	33761/22 06/07/2022	**Vladimir Nikolayevich BORETS** 1972	Preobrazhenskaya Oksana Vladimirovna Strasbourg	Anti-war rally Rostov-on-Don 06/03/2022	article 19.3 § 1 of CAO	detention for 15 days	Rostov Regional Court 18/03/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 14.30 p.m. on 06/03/2022 and 9.00 a.m. on 07/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

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18.	34153/22 06/07/2022	**Ivan Amiranovich ARCHVADZE** 1992	Preobrazhenskaya Oksana Vladimirovna Strasbourg	Anti-war rally Rostov-on-Don 06/03/2022	article 19.3 § 1 of CAO	detention for 15 days	Rostov Regional Court 18/03/2022	Art. 5 (1) – unlawful detention - escorting to and detention at the police station for compiling an offence record between 4:00 p.m. on 06/03/2022 and 6:45 a.m. on 07/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
19.	35626/22 05/07/2022	**Dmitriy Aleksandrovich ROZHKOV** 1987	Tiunov Sergey Yuryevich Yekaterinburg	Anti-war rally Yekaterinburg 24/02/2022	article 20.2 § 2 of CAO	detention for 9 days	Sverdlovsk Regional Court 05/03/2022	Art. 5 (1) – unlawful detention - escorting to and detention at the police station for compiling an offence record between 4.55 p.m. on 24/02/2022 and 1.10 p.m. on 25/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
20.	37485/22 10/07/2022	**Aleksandr Andreyevich VALOV** 1995		Anti-war rally St Petersburg 27/02/2022	article 20.2.2 § 1 of CAO	detention for 10 days	St Petersburg City Court 10/03/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 27/02/2022 for compiling administrative offence record and detention between 5.30 p.m. on 27/02/2022 and 4.00 p.m. on 01/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

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21.	39217/22 27/07/2022	**Darya Nikolayevna YEMELYANOVA** 2002		Anti-war rally St Petersburg 27/02/2022	article 20.2.2 § 1 of CAO	fine of RUB 15,000	St Petersburg City Court 29/03/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 6.00 p.m. on 27/02/2022 and the morning of 28/02/2022, when the applicant was transferred to the court, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
22.	40943/22 07/08/2022	**Yevgeniya Aleksandrovna NISHTA** 2003	Zaytsev Roman Olegovich Volgograd	Anti-war rally Volgograd 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 09/04/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence record on 06/03/2022;	4,000
23.	44070/22 19/08/2022	**Valeriya Anatolyevna GAVRILOVA** 2001	Zaytsev Roman Olegovich Volgograd	Anti-war rally Volgograd 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 19/04/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence record on 06/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
24.	44623/22 20/08/2022	**Valeriya Sergeyevna SABLUKOVA** 2001		Anti-war rally Nizhniy Novgorod 06/03/2022	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 21/04/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 3.10 p.m. on 06/03/2022 and 1.20 p.m. on 07/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
25.	45173/22 27/08/2022	**Maryana Alekseyevna SAMOKHVALOVA** 1995		Anti-war rally St Petersburg 03/03/2022	article 20.2.2 § 1 of CAO	fine of RUB 10,000	St Petersburg City Court 28/04/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 8.05 p.m. on 03/03/2022 and 6:30 p.m. on 04/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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26.	45174/22 05/09/2022	**Ivan Aleksandrovich PESTEREV** 2001	Yermilova Natalya Pavlovna Yekaterinburg	Anti-war rally Yekaterinburg 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Sverdlovsk Regional Court 29/06/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 2.10 p.m. and 9.00 p.m. on 06/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
27.	45195/22 03/09/2022	**Denis Andreyevich KONVISAREV** 2002		Anti-war rally Moscow 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 11/07/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 7.45 p.m. on 27/02/2022 and 0.38 a.m. on 28/02/2022	4,000

[1] Plus any tax that may be chargeable to the applicants.